BY ORDER OF THE COMMANDER
UNITED STATES AIR FORCES IN
EUROPE – AIR FORCES AFRICA



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UNITED STATES AIR FORCES IN
EUROPE – AIR FORCES AFRICA
INSTRUCTION 36-113

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Personnel

STAFFING OF NON-US POSITIONS (GERMANY)

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This instruction implements Air Force Policy Directive (AFPD) 36-1, *Appropriated Funds Civilian Management and Administration,* and AFPD 34-3, *Nonappropriated Funds Personnel Management and Administration.* This instruction establishes policy and procedures for internal placement as well as external recruitment of Non-US employees in Germany. The provisions of this policy apply to all Non-US civilian employees and positions of US Forces and Department of Defense (DoD) elements in Germany who are administered and serviced by a USAFE Civilian Personnel/Human Resources element under the terms of the Collective Tariff Agreement of 16 Dec 1966 for the Employees of the Sending States Forces in the Federal Republic of Germany (CTA II). This instruction applies to all USAFE-AFAFRICA Regular Air Force. It does not apply to Air Force Reserve Command or Air National Guard units. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with (IAW) AFI 33-322, *Records Management and Information Governance Program*, and disposed of IAW Air Force Records Information Management System Records Disposition Schedule. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication.* The authorities to waive wing, and unit level requirements in this publication are identified with a tier number ("T-0, T-1, T-2, T-3") following the compliance statement. See Department of the Air Force Instruction (DAFI) 33-360, Publications and Forms Management, for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of

command to the appropriate Tier waiver approval authority, or alternately, to the Publication OPR for non-tiered compliance items, utilizing guidance identified in DAFI 33-360. This publication may be supplemented at any level, but all supplements must be routed to the OPR of this publication for coordination prior to certification and approval.

SUMMARY OF CHANGES

This document is substantially revised and must be completely reviewed. Major changes include: Changes publication number from USAFEI36-713 to USAFE-AFAFRICAI36-113; Updates to office symbols, references; Changes USAFE Form 10 to USAFE-AFAFRICA Form 10; and Changes USAFE Form 355 to USAFE-AFAFRICA Form 355.

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1. Purpose.

1.1. To establish policy and procedures for the filling of Non-US positions through internal and external recruitment sources.

2. Responsibilities.

2.1. **Chief, Personnel Division (USAFE-AFAFRICA/A1K) will:**

2.1.1. Act for the USAFE-AFAFRICA commander and exercises his delegated authority jointly with representatives of other DoD service components and agencies in countries where joint committees are established in accordance with Air Force Instruction (AFI) 36-129_USAFE-AFAFRICASUP, *Civilian Personnel Management and Administration*.

2.1.2. Develop policy and guidance as it relates to local national employment programs.

2.2. Commanders, supervisors, and selecting officials will:

2.2.1. Forecast personnel needs and initiate timely recruitment action.

2.2.2. Ensure selections of applicants are based on qualification in terms of education, experience, skills, professional development, and demonstrated performance.

2.2.3. Ensure selections are free of discriminatory considerations in accordance with applicable laws and regulations, and without regard to such factors as ethnic origin, sex, religion, or world view, disability, age, or sexual identity.

2.2.4. Refrain from hiring, promoting, favoring or supporting the employment of their family members and relatives (nepotism). As family members/relatives in this respect are to be considered: Father, mother, son, daughter, brother, sister, uncle, aunt, first cousin, nephew, niece, husband, wife, father-in-law, mother-in-law, son-in-law, daughter-in-law, brother-in-law, sister-in-law, stepfather, stepmother, stepson, stepdaughter, stepbrother, stepsister, half brother, half sister, as well as companions in life.

2.2.5. Accept surplus Non-US employees referred based on a mandatory placement right due to reduction in force (RIF).

2.2.6. Accept placement of employees incapacitated to perform in their current position due to medical reasons or disability if a suitable position is or becomes available within the same organization. Give priority consideration to employees referred for placement due to medical reasons or disability from outside the organization. Make efforts to return employees with pay protection to their original pay grade.

2.2.7. Provide the Civilian Personnel/Human Resources office a detailed justification if none of the referred candidates is considered or, as required, in support of the selection in individual cases.

2.2.8. Not restrain employees from applying for positions or expose them to any adverse actions because of their application for other positions.

2.2.9. Assure employees selected for promotion or reassignment, are released within 30 calendar days after completion of the selection process. The release date must be mutually agreed on by the losing and gaining supervisors and, whenever feasible, should coincide with the beginning of a calendar month.

2.3. **Civilian Personnel/Human Resources offices will:**

2.3.1. Provide advice and assistance to commanders, supervisors, selecting officials and applicants/employees on all aspects of the staffing process.

2.3.2. Ensure mandatory placement rights and other legal and/or regulatory requirements are observed.

2.3.3. Ensure through effective recruitment procedures that selecting officials are provided with quality candidates, and current employees are given opportunities for advancement.

3. Staffing Procedure.

3.1. **Recruitment Sources.**

3.1.1. Non-competitive/exempt from announcement).

3.1.1.1. Priority (mandatory) placement of available RIF candidates.

3.1.1.2. Priority placement/placement consideration of current employees for medical reasons, disability or under pay protection.

3.1.1.3. **Name request.** Request for assignment of an individual employee to a vacant position or assignment of higher level duties within the same organizational element when all other employees performing the same duties within that

organizational element were given due consideration. A written justification to that effect will be submitted together with the request.

3.1.2. **Competitive recruitment.** The competitive recruitment process is initiated by the position announcement. There are two categories of announcements, which can be advertized simultaneously:

3.1.2.1. **Internal (US Forces) announcement.** Separate internal announcements are required for the following positions, except for positions to be filled without a material reason on a temporary basis: All positions in wage- and salary grades C, D, K, P, and ZB, and all positions starting at wage- and salary grades A-7, H-2, T-3, and ZP-4. Use **Table 3.1** for areas of consideration.

Table 3.1. Areas of Consideration

Area I: The respective organization where the vacancy exists (e.g. when budgetary or manning restrictions preclude filling of vacancies from outside the organization) Area II: Comprises all organizations serviced by the respective Civilian Personnel/Human Resources office (e.g. Ramstein, Spangdahlem). Area III: Comprises all US Forces organizations in country. Announcement in this area will be made for all position vacancies at pay grade C-8 or equivalent, and above.

3.1.2.1.1. The minimum announcement period is 10 workdays.

3.1.2.2. **General announcement.** Civilian Personnel/Human Resources offices will:

3.1.2.2.1. Publish lower graded positions and positions for which the internal announcement is not likely to produce candidates or a sufficient number of candidates in weekly vacancy lists.

3.1.2.2.2. Publish positions with a traditionally high turnover rate by open continuous announcements for a minimum period of three months.

3.1.2.2.3. Publish announcements to host nation authorities in accordance with legal requirements.

3.2. **Application.** Applicants will submit USAFE-AFAFRICA Form 201, *Application for Employment with the US Air Force in Germany (Non-US)*, together with supporting testimonials and certificates of qualification to the announcing Civilian Personnel/Human Resources office. Internal applicants will, in addition, submit USAFE-AFAFRICA Form 10, *Request for Placement Consideration (Non-US).* Employees who have not yet completed their probationary period are to be considered like external applicants.

3.3. **Screening and Referral.** The responsible staffing specialist will:

3.3.1. Screen application documents and/or the employee's official personnel records to determine the qualifications according to USAFEI 36-703 *Qualification Standards for Non-US Positions in Germany*, position announcement using USAFE-AFAFRICA Form 260, *Record of Qualification* as a rating device and documentary proof of meeting requirements.

3.3.2. Refer qualified candidates for mandatory placement.

3.3.3. Refer qualified applicants identified on USAFE-AFAFRICA Form 355, *Referral and Selection Register.*

3.4. **Selection and appointment process.**

3.4.1. Selecting officials have the option and are highly encouraged to interview candidates referred for selection. Provided the selecting official decides to conduct interviews, the following minimum requirements are established:

3.4.1.1. I**nternal recruitment:** If an internal position announcement produces up to five applicants, who meet the basic qualification requirements, they must all be interviewed. If more than five applicants are referred for selection, the supervisor/selecting official must interview at least five applicants.

3.4.1.2. **General recruitment:** If the general position announcement produces up to three applicants meeting basic qualification requirements, they must all be interviewed. If more than three applicants are referred for selection, at least three must be interviewed.

3.4.2. Upon receipt of supervisor's selection, the Civilian Personnel/Human Resources office will:

3.4.2.1. Initiate appropriate works council coordination (USAFE-AFAFRICA Form 179, *Notification of Proposed Personnel Action (Benachrichtigung Über Eine Beabsichtigte Personalmassnahmne)*.

3.4.2.2. Notify the candidate selected only upon receipt of the works council's concurrence and start the placement/in-hiring process (to include the Local National Screening (LNS) procedure).

3.4.2.3. Notify non-selected applicants by appropriate letter and return application documents (except USAFE-AFAFRICA Form 201 and USAFE-AFAFRICA Form 10 expeditiously, if possible within 4 weeks.

4. Safeguarding Application Documents. To ensure information or referral registers and qualification records are not disclosed to unauthorized personnel, the following procedures apply:

4.1. Hand carry or send referral registers and any attachments to selecting officials in sealed envelopes and return to the CPF in the same manner. Supervisors and personnel specialists must not discuss the contents of these documents with unauthorized personnel.

4.2. Limit applicant's/employee's access to information available to all competitors.

5. Records Maintenance. Civilian Personnel/Human Resources offices will establish and maintain a folder for each position fill action. Include a copy of the announcement, the completed referral register, and all documents issued for each candidate referred for consideration including copies of non-selection letter.

SUSAN M. AIROLA-SKULLY, Colonel, USAF
Director, Manpower, Personnel, and Services

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFPD34-3, *Nonappropriated Funds Personnel Management and Administration*, 13 June 2018

AFPD36-1, *Appropriated Funds Civilian Management and Administration*, 18 March 2019

DAFI33-360, *Publications and Forms Management*, 15 December 2018

AFI33-322, *Records Management and Information Governance Program,* 22 March 2020

AFI36-129_USAFE-AFAFRICASUP, *Civilian Personnel Management and Administration*, 28 January 2020

Federal Ministry of Finance (Germany), *Collective Tariff Agreement for the Employees of the Sending States Forces in the Federal Republic of Germany (CTA II)*, 16 December 1966,

Prescribed Forms

USAFE-AFAFRICA Form 10, *Request for Placement Consideration (Non-US)*

USAFE-AFAFRICA Form 355, *Referral and Selection Register (Non-US)*

Adopted Forms

AF Form 679, *Air Force Publication Compliance Item Waiver Request/Approval*

AF Form 847, *Recommendation for Change of Publication*

USAFE-AFAFRICA Form 179, *Notification of Proposed Personnel Action (Benachrichtigung Über Eine Beabsichtigte Personalmassnahmne)*

USAFE-AFAFRICA Form 201, *Application for Employment with the U.S. Air Forces in Germany (Non-US)*

USAFE-AFAFRICA Form 260, *Record of Qualification (Non-US)*

Abbreviations and Acronyms

AFI—Department of the Air Force Instruction

AFPD—Air Force Policy Directive

AFMAN—Air Force Manual

CTA II—Collective Tariff Agreement for the Employees of the Sending States Forces in the Federal Republic of Germany

DAFI—Department of the Air Force Instruction

DoD—Department of Defense

IAW—In Accordance With

LNS—Local National Screening

OPR—Office of Primary Responsibility

RIF—Reduction in Force

USAFE-AFAFRICA—United States Air Forces in Europe-Air Forces Africa

USAFE-AFAFRICA/A1K—Chief, Personnel Division